Minutes of the
General Government Committee Meeting
Held in the River Plate Room, Ajax Town Hall
At 1:30 p.m. on January 21, 2019

Alternative formats available upon request by contacting:
accessibility@ajax.ca or 905-619-2529 ext. 3347

Present:	Councillor	R. Tyler Morin, Chair
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	A. Khan
		L. Bower
	Mayor	S. Collier

1. Call to Order

Chair Tyler Morin called the meeting to order at 1:30 p.m.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interests.

Motion to Suspend the Rules of Procedure

Moved by: S. Collier

That the rules of procedure be suspended to add an item to the General Government Committee agenda regarding Ajax Auto Wreckers – Minutes of Settlement.

CARRIED on 2/3rds

Chair Tyler Morin noted that the additional item would be addressed following presentations.

3. Adoption of Minutes

3.1 Regular Meeting

Moved by: S. Collier

That the Minutes of the regular meeting of the General Government Committee held on September 10, 2018 be adopted.

CARRIED

4. Consent Agenda

Members separated items 4.1, 4.4, and 4.8 for discussion.

Moved by: J. Dies

That items 4.2, 4.3, 4.5, 4.6, and 4.7 of the consent agenda be adopted.

CARRIED

4.1 2018 Operating Budget Forecast

Committee members asked questions regarding revenues from Town fitness facilities, ice usage, and parking fines. Tracey Vaughan, Director of Recreation, Culture and Community Development, provided information regarding the Town's fitness programming and ice usage practices. Sheila Strain, Director of Finance/Treasurer, and Nicole Cooper, Director of Legislative and Information Services/Town Clerk, provided information regarding the occasional use on-street parking pilot program and its potential impacts on parking fine revenues.

Moved by: M. Crawford

That the report on the 2018 Operating Budget Forecast be received for information.

CARRIED

4.2 Emergency Purchase ~ ACC Pad 2 Header Replacement

Moved by: J. Dies

1. That the report on the emergency contract award in the amount of $159,766.53 (inclusive of all taxes) for the ACC Pad 2 header replacement be received for information.

CIMCO Refrigeration	$124,827.78
Ferro Canada	$20,114.00
Athletica	$12,520.40
Birchcliff Construction	$1,130.00
Golder	$1,124.35
Other Fees	$50.00
Total Project costs (inclusive of all taxes)	$159,766.53

2. That Council approve funding of $143,879.61 to be allocated to Capital Account No. 1000411 from Capital Contingency Reserve.

CARRIED

4.3 Contract Award ~ ACC Rink Slab & Flooring Replacement

Moved by: J. Dies

1. That Council award the contract for ACC Rink Slab & Flooring Replacement, to Schilthuis Construction Inc. in the amount of $1,387,640 (inclusive of all taxes).

2. That Council award the contract for Contract Administration ~ ACC Rink Slab & Flooring Replacement, to Barry Bryan Associates in the amount of $35,595.00 (inclusive of all taxes).

3. That Council approve funding of $1,409,833.92 to be allocated to Capital Account No. 1002211 from Building Maintenance Reserve.

CARRIED

4.4 Contract Award - Block Tree Pruning Services

Committee members asked questions regarding the number of trees pruned annually, cost per tree, and whether the service could be provided by Town staff. Catherine Bridgeman, Acting Director of Operations and Environmental Services, responded to questions from Committee members.

Moved by: S. Collier

1. That Council award the contract for Block Tree Pruning to Davey Tree Expert Co. of Canada Limited in the amount of $156,590.88 (inclusive of all taxes), for a period of one year.

2. That Council authorize staff to renew the contract for an additional two, one year periods pending an analysis and satisfactory performance review at the anniversary date of the contract, in the estimated amount of $320,263.58 (inclusive of all taxes).

CARRIED

4.5 Contract Award – Paradise Park Wetland Restoration Construction

Moved by: J. Dies

That Council award the contract for Paradise Park Wetland Restoration, to Toronto and Region Conservation Authority (TRCA) in the amount of $470,971.80 (inclusive of all taxes).

CARRIED

4.6 Property Disposal to Regional Municipality of Durham for Bus Rapid Transit Project

Moved by: J. Dies

That a by-law to authorize the conveyance of Part 1 and 2 on 40R-30188 to the Regional Municipality of Durham for the widening of Kingston Road between Salem Road and Galea Drive, to facilitate the construction of a BRT bus-only lane, in exchange for nominal compensation and reasonable legal fees, be presented to Council at its meeting of January 28, 2019.

CARRIED

4.7 Development Charge Deferral Agreement – 70 Station Street

Moved by: J. Dies

That the attached Development Charge Deferral Agreement be endorsed by Council

CARRIED

4.8 2018 Municipal & School Board Election: Debrief Assessment

Committee members asked questions regarding election sign rules on local and regional roads, results of the survey of online voters, Voters List quality issues, and potential use of paper ballots alongside internet voting. N. Cooper responded to questions regarding review of the Town's election sign by-law. Alexander Harras, Manager of Legislative Services/Deputy Clerk responded to questions from committee Members regarding the Voters List and voting technologies.

Main Motion

That the report '2018 Municipal & School Board Election: Debrief Assessment' be received for information.

Amendment

Moved by: S. Lee

That the motion be amended by adding the following clauses:

And that staff be directed to advance the planned review of the Election Sign By-law, to be completed prior to the 2019 Summer Recess;

And that such review include an examination of measures to reduce the volume of election signs permitted in the Town of Ajax during municipal, provincial, and federal elections, including but not limited to measures such as:

- increasing distance separation requirements between election signs;
- prohibiting election signs on local roads; and
- reducing the time period during which election signs are allowed to be displayed.

CARRIED

Motion as Amended

Moved by: S. Lee

That the report '2018 Municipal & School Board Election: Debrief Assessment' be received for information;

And that staff be directed to advance the planned review of the Election Sign By-law, to be completed prior to the 2019 Summer Recess;

And that such review include an examination of measures to reduce the volume of election signs permitted in the Town of Ajax during municipal, provincial, and federal elections, including but not limited to measures such as:

- increasing distance separation requirements between election signs;
- prohibiting election signs on local roads; and
- reducing the time period during which election signs are allowed to be displayed.

CARRIED

5. Discussion

None

6. Presentations

6.1 Modernizing Ajax's Approach to Community Consultation and Advisory Committees

Nicole Cooper, Director of Legislative & Information Services/Clerk, and Sarah Moore, Committee & Accessibility Coordinator, provided a brief presentation reviewing the contents of the report and the recommendations contained therein. N. Cooper discussed challenges with the current advisory committee structure and alternative consultation and engagement models. S. Moore reviewed proposed changes to the remaining advisory committees and provided an update on the status of committee recruitment.

Committee members asked questions regarding how different engagement channels will be utilized, history of the advisory committee model, and the status of recruitment efforts. Rachael Wraith, Acting Manager of Public and Strategic Affairs, N. Cooper and S. Moore responded to questions from committee members.

Moved by: S. Lee

1. That Policy 047, "Advisory Committees" (ATT-1) renamed "Committees and Boards", be approved as revised;

2. That by-laws to re-establish the following Committees (ATTs 2-5) be forwarded to the January 28th Council meeting:
   - Accessibility Advisory Committee
   - Heritage Advisory Committee

- Committee of Adjustment
- Property Standards/Animal Appeals Committee

3. That the proposed approach to Community Consultation, as outlined within this report, be endorsed by Council;

4. That staff be directed to report back to Council within one year regarding the effectiveness of the revised approach.

CARRIED

Additional Item: Ajax Auto Wreckers – Minutes of Settlement

Mayor Collier provided a brief overview of the history of the property. Geoff Romanowski, Manager of Planning, described the Minutes of Settlement, the changing nature of uses on the property, and potential solutions to the outstanding violations of the Minutes of Settlement and Town by-laws.

Committee members asked questions regarding the history of complaints filed against the property, other infractions and charges being pursued by the Town, status of compliance since entering into the Minutes of Settlement, current permissions for fence height and material stacking, and compatibility issues with the surrounding area. G. Romanowski and Bruno Scopacasa, Senior Planner, responded to questions from Committee members. Ron Hawkshaw, Town Solicitor, described planning processes applicable to the property beyond the Minutes of Settlement.

Mayor Collier noted he wished to introduce a motion regarding the matter, which first requires a motion to reconsider Council's last deliberation of this matter on June 12, 2017.

Motion to Reconsider

Moved by: S. Collier

That committee reconsider the matter regarding the Ajax Auto Wreckers Minutes of Settlement, last considered at its meeting of June 12, 2017.

CARRIED on 2/3rds

Mayor Collier reviewed his motion that would allow staff to amend the Minutes of Settlement to alter restrictions related to fence height and outdoor storage of material, among other matters.

Committee members discussed the motion and asked questions regarding likelihood of compliance, effect on outstanding court proceedings, the potential for setting a precedent for other properties, and the costs and time involved with filing and completing the necessary planning applications. Derek Hannan, Manager of By-law Services, reviewed ongoing court proceedings related to the property. G. Romanowski provided an overview of the costs for zoning by-law amendment and official plan amendment applications with the Town and the average time needed to complete these processes. The appropriateness of waiving planning application fees for Ajax Auto Wreckers was discussed. R. Hawkshaw suggested revisions to the motion.

Moved by: S. Collier

1. That Staff be directed to amend the 2001 Minutes of Settlement between Ajax Auto Wreckers and the Town of Ajax as follows:

    a. To remove height restrictions regarding outdoor storage of crushed vehicles;

    b. To remove height restrictions regarding crushed, baled and/or sheared salvage materials; and

    c. To remove height restrictions regarding fence height on the perimeter of the subject property.

2. That Staff be directed to accept and process Official Plan amendment and zoning bylaw amendment applications in respect of this matter.

CARRIED

Members recessed at 3:49 p.m.

Members resumed the meeting at 3:59 p.m.

Closed Session (3:59 p.m.)

7. Authority to Hold a Closed Session

Moved by: S. Lee

That the Committee convene to a Closed Session pursuant to Section 239 (2) (b) of the *Municipal Act, 2001,* as amended, to discuss matters pertaining to a personal matter about identifiable individuals, including municipal or local board employees.

CARRIED

7.1 **Nomination to Various Durham Region Advisory Committees**

Open Meeting (4:01 p.m.)

Ratify Actions Taken In Closed Session

Moved by: S. Collier

That Council nominate Caryn Antram for appointment to the Durham Region Transit Advisory Committee;

That Council nominate Buck Winter for appointment to the Durham Agricultural Advisory Committee; and

That Council nominate Kim Sellers for appointment to the Durham Environmental Advisory Committee.

CARRIED

8. Adjournment (4:02 p.m.)

Moved by: A. Khan

That the January 21, 2019 meeting of the General Government Committee be adjourned.

CARRIED

Chair

D-Clerk